

WITNESS STATEMENT

Criminal Procedure Rules, r.16.2 / Criminal Justice Act 1967, s.9; Magistrates' Courts Act 1980, s.5B

Statement of	Deniz AKSOY
Age	Over 18 (d.o.b. 19.07.1982)
Occupation	Advanced scaffolder (formerly employed by TowerLine Access Ltd; CISRS card no. 41-88213)
Address	Care of Rushbrook & Halligan Solicitors, 4 Park Cross Street, Leeds LS1 2QH
Taken by	HM Inspector K. Ormerod-Suss, assisted by DC L. Mbeki-Farnworth
Date	12 February 2024 (statement taken over three sessions at the witness's home)
Interpreter	None required. The witness declined the offer of a Turkish interpreter.
Exhibits produced	DA/1 (site photograph), DA/2 (digital audio file, 00:04:11), DA/3 (transcript of DA/2)

This statement (consisting of 6 pages each signed by me) is true to the best of my knowledge and belief and I make it knowing that, if it is tendered in evidence, I shall be liable to prosecution if I have wilfully stated in it anything which I know to be false or do not believe to be true.

1. I am the above-named person. I worked as an advanced scaffolder for TowerLine Access Ltd from March 2019. I have 22 years in the trade. I was on the Brackenmoor Wharf job from the first week of June 2023.
2. I want to say at the start that my memory of the day itself is not complete. I was on morphine for a long time afterwards and I have had two operations. Some of what I say about the morning I have put together afterwards from talking to people and from my own notes. I have tried to separate what I remember from what I was told. Where I am not sure, I say so.
3. The scaffold on the east elevation was a tied independent with seven loading bays. I helped build bays LB-1 to LB-5. I did not build LB-7. LB-6 and LB-7 went up in the week beginning 6 November 2023 while I was on a different elevation.
4. The way it was supposed to work was that Gareth Pyle, our chargehand, inspected the scaffold every seven days and after any alteration, and signed a handover. Meridian would not let anyone load a bay without a signed handover. That was the rule on paper.

The tie problem

5. On Monday 13 November 2023 I was working at level 5 on the east side. In the afternoon, I would say around three o'clock but I could be an hour out, Gareth came down from level 7 and he was annoyed. He said words to the effect: 'There are no ties in at six and seven on that end, the facade fixings aren't in, and they want to load it tomorrow.' I said something like 'well don't sign it then.' He said 'I'm not signing that.'
6. I did not go up to level 7 myself and I did not personally see whether ties were missing. I am telling you what Gareth said to me.
7. Later the same afternoon, and this I do remember clearly because it was in the drying room, I heard Gareth on the telephone. He was saying 'I've put it on the tablet, it's on the tablet.' He then said, and these words stuck with me, 'If you want it changed you change it, I'm not touching it.' I do not know who he was speaking to. I assumed it was Ruaridh because Gareth said 'Ruaridh' at some point in the call, but I cannot be certain and I did not hear the other side.

Tuesday 14 November 2023

8. I badged in at about ten to seven. There was a briefing at 07:15 taken by Ruaridh Delacroix-Hale. He said the cladding had to be up to level 7 by Friday because there was 'a certificate riding on it'. I remember the phrase because a few of the lads made a joke about it afterwards.
9. The weather was bad from the start. It was gusty. By mid-morning it was the kind of wind where you feel the boards move. I have worked in worse but not with panels on a crane.
10. At some point in the morning — and I now understand from the log that this is said to be 10:40, though I did not look at a clock — word came round that lifting was stopped because of wind. I remember standing about for a while. That is the part I am confident about: there was a stoppage.
11. Then lifting started again. I do not know who restarted it. I did not hear any announcement. I looked up and the crane was slewing with panels on.

12. I said to somebody, I think it was one of the agency lads, ‘are we back on then?’ and he shrugged. I then heard a voice over the radio, which I am fairly sure was Ruaridh, say something like ‘one more and we’re done for the morning’. I cannot be certain it was him. The radios were poor and everyone sounds the same on them.

12. I saw Tomasz on the LB-7 deck. He was on the tag line. I did not know him well. He was Polish, he was quiet, he was a good worker.

13. The next thing was a bang and then a tearing noise, a sort of long ripping sound, and then the whole end of the scaffold came away from the building at the top and went outwards. I was hit by tube. I do not remember hitting the ground. I remember someone holding my hand and saying my name.

The recording

14. On 4 March 2024 I attended a meeting at the Meridian head office at Thorpe Park in Leeds. I had asked for a meeting about my sick pay. Mr Ferris was there and a lady from HR whose name I think was Bronwen. Nobody told me I was being recorded and nobody asked me whether I was recording. I recorded the meeting on my telephone in my jacket pocket because I did not trust them and I wanted a record.

15. I produce that recording as exhibit DA/2 and the transcript that my solicitors prepared as DA/3. I have listened to the recording. There are parts I cannot make out. I do not accept the transcript is right in every place. In particular at about two minutes forty there is a passage which my solicitors have transcribed one way and which I hear differently. I have told them that.

16. I am aware that Meridian says the recording is inadmissible and that I obtained it improperly. I am not a lawyer. I took the recording because I was frightened of being blamed.

Matters I have been asked about specifically

17. I have been asked whether I saw Mr Ferris on site on 14 November 2023. I do not believe I did. I have been shown a photograph, exhibit DA/1, and asked whether the person in the middle distance in a white hard hat is Mr Ferris. I cannot say. It could be. He is one of several people I have seen on site over the months in a white hat and I could not pick him out reliably.

18. I have been asked about my own witness statement to my solicitors dated 8 January 2024 in the civil claim, in which I am recorded as saying ‘I saw Aldwyn Ferris on site that morning.’ I did say something like that to my solicitor. I now accept I should not have. What I meant was that I understood he had been on site. I did not see him myself. I was on a lot of medication when I gave that statement and I want to correct it.

19. I have been asked whether anyone has offered me anything for my evidence. No. My solicitors act on a conditional fee agreement in my civil claim against Meridian, TowerLine and Northgate. I understand there is an issue about TowerLine being in liquidation and about insurance. That is being dealt with by my solicitors.

20. I have been asked about my immigration status because it has been raised. I am a British citizen. I was born in Hackney.

Signed:

D. Aksoy

Name / role:

D. Aksoy — Witness

Date:

12 February 2024

Note:

Signed on each page. Statement read back to the witness. Witness declined to sign page 4 at first sitting; signed 12.02.2024 after amendment to paragraph 15.